



Contract for Services between

**National Aboriginal Community
Controlled Health Organisation
(NACCHO)**

And

**Urapuntja Health Service Aboriginal
Corporation**

For

**Blood Borne Viruses and Sexually
Transmissible Infections (BBVSTI)
Program**

Includes for completion:

Attachment A | Activity Workplan template

Attachment B | Program Budget template

Attachment C | Risk Management Plan template

Attachment D | Guidelines for the Use of Syphilis Point of Care Testing (2024)

Attachment E | Conflict of Interest Declaration

Parties to this Contract

Service Provider

Full legal name of the service provider	Urapuntja Health Service Aboriginal Corporation
Legal entity type (e.g., individual, incorporated association, company, partnership etc)	Incorporated under CATSI Act (ICN 2)
Trading or business name	Urapuntja Health Service Aboriginal Corporation
Australian Business Number (ABN)	45 449 518 275
Registered for Goods and Services Tax (GST)	Yes
Registered office (physical)	Sandover Highway, Amengernterneah via Alice Springs NT 0872
Relevant business place (if different)	N/A
Telephone	(08) 8956 9875
Email	ceo@urapuntja.org.au

AND

National Aboriginal Community Controlled Health Organisation (referred in this Contract as “NACCHO”),

Level 5 East, 2 Constitution Avenue Canberra ACT 2601
ABN 89 078 949 710

1. Background

NACCHO, its Member & Affiliate Services, and the Department of Health and Aged Care recognise the need for collaboration to achieve equity in Aboriginal and Torres Strait Islander sexual health and blood-borne virus outcomes, and effective partnerships.

This funding contract recognises the foundational efforts in establishing the national Aboriginal and Torres Strait Islander Blood Borne Viruses and Sexually Transmissible Infections (BBVSTI) Program in 2021 to respond in a nationally coordinated, community-led way to enhance the sexual health and BBV workforce to increase testing and treatment in response to the disproportionate rates of BBV and STIs amongst Aboriginal and Torres Strait Islander people.

The BBVSTI Program began amid the COVID-19 pandemic and a declared syphilis outbreak, worsening an ongoing workforce crisis. The BBVSTI Program prioritises building the

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Aboriginal Community-Controlled Health Organisation (ACCHO) sector sexual health and BBV workforce and acknowledges the sector's critical BBVSTI work prior to program roll out.

Between January 2021 and December 2024, the BBVSTI Program operated under a different Department of Health and Aged Care-NACCHO contract. The new contract with existing enrolled services commits to BBVSTI Program implementation to 30 June 2026 and strengthens the program including by providing indexation and enrolled ACCHOs with the opportunity to opt-in to syphilis point of care testing. Critically, BBVSTI Program implementation priorities remain locally determined.

At this Deed's execution, it's recognised that BBV and STI rates among Aboriginal and Torres Strait Islander people are significantly higher than for non-Indigenous people, with rates up to sixteen times higher depending on the infection.

Strengthened partnerships among key stakeholders is vital for improving BBV and STI health equity outcomes in Aboriginal and Torres Strait Islander communities. Through this contract, NACCHO and enrolled ACCHOs and Affiliates will ensure that Aboriginal and Torres Strait Islander insights and knowledge are centred, so that quality, evidence informed, culturally appropriate, and appropriately resourced solutions can be effectively implemented.

The five national BBV and STI strategies aim to improve BBV and STI outcomes for Aboriginal and Torres Strait Islander people and eliminate these as public health threats by 2030. The National Aboriginal and Torres Strait Islander BBV and STI Strategy is the only population-specific strategy. The Australian Government has committed to an equity threshold, meaning the targets will not be considered met until they are met for Aboriginal and Torres Strait Islander people. This is consistent with the National Agreement on Closing the Gap and the Priority Reforms.

The BBVSTI Program is a demonstration of the Australian Government's commitment to the National Agreement on Closing the Gap and the Priority Reforms, particularly Priority Reform Two, Building the Community-Controlled Sector. It recognises ACCHOs as uniquely positioned to test, treat, and address BBV and STI stigma among Aboriginal and Torres Strait Islander peoples, advancing self-determination. ACCHOs, supported by NACCHO and Affiliates, deliver a holistic comprehensive model of primary care that emphasises multidisciplinary teams, long-term relationships, and culturally appropriate tailored approaches, going beyond mainstream services. The additional challenges and needs within remote and regional contexts are recognised.

Services delivered as part of the BBVSTI Program are underpinned and supported by NACCHO's Clinical Steering Group through the development of governance and program materials, including Guidelines for the use of Syphilis Point of Care Testing (2024).

This contract acknowledges our collaborative, inclusive partnership model as essential to progressing strong and equitable Aboriginal and Torres Strait Islander sexual health and BBV health outcomes.

2. Purpose of this Contract

- 2.1 The purpose of this Contract is to provide funding to the Service Provider, **Urapuntja Health Service Aboriginal Corporation** to deliver the following services:

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- (a) Increasing sexual health workforce, including clinical staff and program coordination staff, with a particular emphasis on Aboriginal Health Practitioners, Aboriginal Health Workers and Aboriginal and Torres Strait Islander community-based workers; and
- (b) Delivering increased STI and BBV screening, including syphilis, and testing of Aboriginal and Torres Strait Islander clients across service areas

The objectives of the Services to be delivered are to:

- (a) Assist in controlling BBVs and STIs in Aboriginal and Torres Strait Islander populations.
- (b) Undertaking opportunistic control efforts for syphilis (secondary).
- (c) Consider long-term sustainable response to BBV and STI issues in Aboriginal and Torres Strait Islander people, in line with the five National BBVSTI strategies for 2024-2030 (tertiary) with the goal of reducing rates of BBVSTI to a sustainable low level.

The intended outcomes of the Services to be provided are to:

- (a) Build workforce capacity in enrolled services to increase the testing for, and treatment of, BBVs and STIs.
- (b) Co-design and implement locally responsive approaches to BBVs and STIs.
- (c) Increase the number of Aboriginal and Torres Strait Islander people tested for BBV and STIs, including:
 - Development of processes to collect testing data to feed into continuous quality improvement (CQI) of service delivery.
 - Make progress towards clinical benchmarks for community-controlled testing.
- (d) Support community-controlled dissemination of a range of materials to raise awareness of BBVs and STIs

3. Term of the Contract

- 3.1 This contract commences on the date of the last signatory and ends on **31 August 2026** unless terminated early in accordance with Clause 16 of this Contract.
- 3.2 The activity end date for delivery of services under this Contract is **30 June 2026**.

4. Services to be Provided

- 4.1 The Service Provider must perform the services in accordance with this contract, with due care and skill and in accordance with relevant best practice, including any applicable Australian or industry standards. The Service Provider is not permitted to transfer responsibility for the provision of services to another provider without the written authorisation of NACCHO.

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- 4.2 The Service Provider must not assign any of its obligations under this Contract without the express approval of NACCHO.

5. Spending Contract Funds

- 5.1 The Service Provider agrees to spend the contract funds for the purpose of performing the activity and otherwise in accordance with this contract.
- 5.2 This funding may be used to support the objectives and intended outcomes. Eligible activities can include but are not limited to:
- a) Staff salaries and wages and on-costs;
 - b) Program costs (i.e., incentives, health promotion, recruitment costs, minor medical equipment, data);
 - c) Domestic travel and accommodation;
 - d) Motor vehicle costs (lease, insurance, maintenance);
 - e) Office expenses (stationary, IT support, internet, printing, telephone; and
 - f) Staff training and development.

This is not an exhaustive list, and other activities may be approved at the discretion of NACCHO.

The following are ineligible activities:

- a) purchase of land
- b) major capital expenditure
- c) covering of retrospective costs
- d) costs incurred in the preparation of an application or related documentation
- e) overseas travel
- f) major constructure/capital works
- g) activities for which other Commonwealth, state, territory, or local government bodies have primary responsibility.

6. Specified Personnel

- 6.1 Not Applicable

7. Relationship Between parties

- 7.1 A party is not by virtue of this Contract the employee, agent or partner of the other Party and is not authorised to bind or represent the other Party.

8. Compliance with Laws and Policies

- 8.1 The Service Provider agrees, in carrying out this contract, to comply with all Australian laws and any relevant policies that may be issued by the Australian Government and any applicable State and Territory governments from time to time.

9. Taxes, Duties and Government Charges

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- 9.1 The Service Provider agrees to pay all taxes, duties and government charges imposed or levied in Australia or overseas in connection with this Contract.

10. Confidentiality

- 10.1 The Parties agree not to disclose each other's confidential information without the other Party's prior written consent unless required or authorised by law or Parliament to disclose.

- 10.2 NACCHO may disclose the Service Provider's confidential information where:

- a) NACCHO is providing information about the Activity or Grant in accordance with Commonwealth accountability and reporting requirements; or
- b) NACCHO is disclosing the information to a Minister of the Australian Government, a House, or Committee of the Commonwealth Parliament

11. Intellectual Property

- 11.1 The Parties agree that the ownership of Intellectual Property which exists prior to the commencement of Services under this Contract ("Pre-existing IP") will not be altered or transferred or assigned merely by virtue of its use for the purposes of this Contract.

- 11.2 Each Party to this Contract assigns to each other Party a royalty-free, non-exclusive, non-transferrable licence to use its Pre-existing IP, or other Background IP, to the extent necessary to carry out the Project. Each Party agrees to comply with any reasonable directions of another Party regarding the use of that other Party's Pre-existing IP.

- 11.3 All Intellectual Property Rights in the contract material (including any materials created for the purpose of the contract) vest in NACCHO on creation.

- 11.4 NACCHO agrees that for any intellectual property that is created or comes into existence as a result of this program of work it will grant to the Service Provider, the relevant funding body and, if applicable, the Commonwealth and its agencies a world-wide, perpetual, irrevocable, royalty-free, non-exclusive, transferable licence to use, reproduce, modify, adapt, publish, broadcast, and communicate any materials created for the purpose of this Contract.

- 11.5 This clause survives the expiration or earlier termination of this Contract.

12. Indemnity

- 12.1 The Service Provider indemnifies NACCHO, the relevant funding body, the Commonwealth and its employees (where applicable) against any claim, loss or damage arising in connection with the Activity.

- 12.2 The Service Provider's obligation to indemnify NACCHO, the relevant funding body, the Commonwealth, and its employees (where applicable) will reduce proportionally to the extent any act or omission involving fault on the part of NACCHO, the relevant funding body or the Commonwealth contributed to the claim, loss or damage.

- 12.3 This clause survives the expiration or earlier termination of this Contract.

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13. Insurances

- 13.1 The Service Provider agrees to maintain adequate public and professional liability insurance, and workers compensation insurance in accordance with legislation for as long as any obligations remain in connection with this Contract and provide proof of insurance to NACCHO upon request.
- 13.2 This clause survives the expiration or earlier termination of this Contract.

14. Dispute Resolution

- 14.1 The Parties agree not to initiate legal proceedings in relation to a dispute arising under this Contract unless they have first tried and failed to resolve the dispute by negotiation.
- 14.2 Unless clause 14.3 applies, the Parties agree to continue to perform their respective obligations under this Contract when a dispute exists.
- 14.3 The Parties may agree to suspend performance of the Contract pending resolution of the dispute.
- 14.4 Failing settlement by negotiation in accordance with clause 14.1, the Parties may agree to refer the dispute to an independent third person with power to intervene and direct some form of resolution, in which case the Parties will be bound by that resolution. If the Parties do not agree to refer the dispute to an independent third person, either Party may initiate legal proceedings.
- 14.5 Each Party will bear their own costs in complying with this clause 14, and the Parties will share equally the cost of any third person engaged under clause 14.4.
- 14.6 The procedure for dispute resolution under this clause does not apply to any action relating to termination, cancellation or urgent interlocutory relief.

15. Work Health and Safety

- 15.1 The Service Provider agrees to ensure that it complies at all times with all applicable work health and safety legislative and regulatory requirements and any additional work health and safety requirements set out in the Contract.
- 15.2 If requested by NACCHO, the service provider agrees to provide copies of its work health and safety management plans and processes and such other details of the arrangements it has in place to meet the requirements in clause 15.1.

16. Reduction, Suspension and Termination

16.1 Reduction in Scope of Contract for Fault

- 16.1.1 If the Service Provider does not comply with an obligation under this Contract and NACCHO believes that the non-compliance is incapable of remedy, or if the Service Provider has failed to comply with a notice to remedy, NACCHO may by written notice reduce the scope of the Contract. The Service Provider agrees on receipt of the notice of reduction, to:

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- a) stop or reduce the performance of the Service Provider's obligations as specified in the notice;
- b) take all available steps to minimise loss resulting from the reduction;
- c) continue performing any part of the Activity or the Contract not affected by the notice if requested to do so by NACCHO; and
- d) report on, and return any part of, the Contract funds to NACCHO, or otherwise deal with the Contract Funds as directed by NACCHO.

16.1.2 In the event of reduction under clause 16.1.1, the amount of Contract funds will be reduced in proportion to the reduction in the scope of the Contract.

16.2 Suspension

16.2.1 If:

- a) the Service Provider does not comply with an obligation under this Contract and NACCHO believes that the non-compliance is incapable of remedy; or
- b) NACCHO reasonably believes that the Service Provider is unlikely to be able to perform the Activity or manage the Grant in accordance with this Contract; or
- c) NACCHO reasonably believes that there is a serious concern relating to the Service Provider or this Contract that requires investigation.

NACCHO may by written notice:

- d) immediately suspend the Service Provider from further performance of the Activity (including expenditure of Contract funds); and/or
- e) require that the non-compliance or inability to perform the Activity be remedied, or an investigation be completed, within the time specified in the notice.

16.2.2 If the Service Provider remedies the non-compliance or inability to perform the Activity specified in the notice to NACCHO's reasonable satisfaction, or NACCHO reasonably concludes that the concern is unsubstantiated, NACCHO may direct the Service Provider to recommence performing the Activity.

16.2.3 If the Service Provider fails to remedy the non-compliance or inability to perform the Activity within the time specified, or NACCHO reasonably concludes that the concern is likely to be substantiated, NACCHO may reduce the scope of the Contract in accordance with clause 16.1 or terminate the Contract immediately by giving a second notice in accordance with clause 16.3.

16.3 Termination for fault

16.3.1 NACCHO may terminate this Contract by fourteen (14) days written notice where the Service Provider has:

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- a) failed to comply with an obligation under this Contract and NACCHO believes that the non-compliance is incapable of remedy or where clause 16.2.3 applies; or
- b) provided false or misleading statements in relation to the Contract funds; or
- c) become bankrupt or insolvent, entered into a scheme of arrangement with creditors, or come under any form of external administration.

16.3.2 The Service Provider agrees, on receipt of the notice of termination, to:

- a) stop the performance of the Service Provider's obligations;
- b) take all available steps to minimise loss resulting from the termination; and
- c) report on, and return any part of, the Contract funds to NACCHO, or otherwise deal with the Contract, as directed by NACCHO.

16.3.3 This clause survives the expiration or earlier termination of this Contract.

17. Repayment of Funds

17.1 If any amount of the Contract Funds:

- a) has been spent other than in accordance with this Contract; or
- b) is additional to the requirements of the Activity;

Then NACCHO may by written notice:

- a) require the Service Provider to repay that amount to the NACCHO; or
- b) require the Service Provider to deal with that amount as directed by NACCHO; or
- c) deduct the amount from subsequent payments of the Contract Funds or amounts payable under another agreement between the Service Provider and NACCHO.

17.2 If NACCHO issues a notice under this Agreement requiring the Service Provider to repay the specified amount of Contract Funds:

- a) the Service Provider must do so within the time period specified in the notice;
- b) NACCHO may recover the amount under this Contract as a debt due to NACCHO without further proof of the debt being required.

18. Carry Forward of Funds

18.1 If any of the Contract Funds remain unspent on 30 June of the relevant financial year, the Service Provider should notify NACCHO of the amount of unspent funds and how the remaining Contract Funds will be used and the expected timeframe for this to occur.

18.2 Upon receipt of a request to retain Contract Funds, NACCHO will assess this request within 20 business days of receipt of the request and

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- a) Advise the Service Provider their request to carry forward funds for the identified activity has been approved; or
- b) Request the Service Provider return unspent Contract Funds to NACCHO.

19. Notices

- 19.1 Each party to this Contract agrees to promptly notify the other Party of anything reasonably likely to adversely affect the undertaking of the Activity, management of the Contract funds or its performance of any of its other requirements under this Contract.
- 19.2 A notice given by a Party under this contract must be in writing and addressed to the other Party's representative as set out in the Contract details or as most recently updated by notice given in accordance with this clause.
- 19.3 The Service Provider must immediately issue NACCHO a notice on becoming aware of a significant event.

20. Variation

- 20.1 Any agreement or understanding to vary or extend the Contract will not be legally binding upon either Party unless in writing and agreed to by both parties.

21. Conflict of Interest

- 21.1 The Service Provider must provide NACCHO with a signed Conflict of Interest Declaration.
- 21.2 Where a proposed organisation declares a conflict of interest, they must also provide NACCHO with a Conflict-of-Interest mitigation strategy when signing the contract for services.
- 21.3 Other than those which have already been disclosed to NACCHO, the Service Provider warrants that, to the best of its knowledge, at the date of this Contract neither it nor its officers have any actual, perceived, or potential conflicts of interest in relation to the services to be provided.
- 21.4 If during the term of the Contract, any actual, perceived, or potential conflict arises or there is any material change to a previously disclosed conflict of interest, the Service Provider agrees to:
 - a) notify NACCHO promptly and make full disclosure of all relevant information relating to the conflict; and
 - b) take any steps NACCHO reasonably requires to resolve or otherwise deal with that conflict.
- 21.5 If the Service Provider fails to notify NACCHO under this clause 21 or is unable or unwilling to resolve or deal with the Conflict as required, NACCHO may terminate this Contract in accordance with the provisions of clause 16.

Legislative Compliance Clauses:

22. Vulnerable Persons

22.1 In this Contract:

- a) **Criminal or Court Record** means any record of any Other Offence;
- b) **Other Offence** means, in relation to a person, a conviction, finding of guilt, or court order relating to:
 - i. an apprehended violence or protection order made against the person;
 - ii. a prohibited drug, narcotic or other prohibited substances;
 - iii. violence against another person or the injury, but excluding the death, of another person; or
 - iv. an attempt to commit a crime or offence, or to engage in any conduct or activity, described in paragraphs (i) to (iii);
- c) **Police Check** means a formal inquiry made to the relevant police authority in each State or Territory and designed to obtain details of an individual's criminal conviction or a finding of guilt in all places (within and outside Australia) that the Service Provider know the person has resided in;
- d) **Serious Offence** means:
 - i. a crime or offence involving the death of a person;
 - ii. a sex-related offence or a crime, including sexual assault (whether against an adult or child); child pornography, or an indecent act involving a child;
 - iii. fraud, money laundering, insider dealing or any other financial offence or crime, including those under legislation relating to companies, banking, insurance or other financial services; or
 - iv. an attempt to commit a crime or offence described in (i) to (iii);
- e) **Serious Record** means a conviction or any finding of guilt regarding a Serious Offence; and
- f) **Vulnerable Person** means:
 - i. A Child, or an individual aged 18 years and above who is or may be unable to take care of themselves or is unable to protect themselves against harm or exploitation for any reason, including age, physical or mental illness, trauma or disability, pregnancy, the influence, or past or existing use, of alcohol, drugs or substances or any other reason.

22.2 Before any person commences performing work on any part of the Activity that involves working or contact with a Vulnerable Person, the Service Provider must:

- a) obtain a Police Check for that person;
- b) confirm that the person is not prohibited by any law from being engaged in a capacity where they may have contact with a Vulnerable Person;

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- c) comply with all State, Territory or Commonwealth laws relating the employment or engagement of persons in any capacity where they may have contact with a Vulnerable Person; and
 - d) ensure that the person holds all licences or permits for the capacity in which they are to be engaged, including any specified in the Contract Details, and the Service Provider must ensure that Police Checks and any licences or permits obtained in accordance with this clause 22.2 remain current for the duration of their involvement in the Activity.
- 22.3 The Service Provider must ensure that a person does not perform work on any part of the Activity that involves working or contact with a Vulnerable Person if a Police Check indicates that the person at any time has:
- a) a Serious Record; or
 - b) a Criminal or Court Record and the Service Provider has not conducted a risk assessment and determined that any risk is acceptable.
- 22.4 In undertaking a risk assessment under clause 22.3, the Service Provider must have regard to:
- a) the nature and circumstances of the offence(s) on the person's Criminal or Court Record and whether the charge or conviction involved Vulnerable Persons;
 - b) whether the person's Criminal or Court Record is directly relevant to, or reasonably likely to impair the person's ability to perform, the role that the person will, or is likely to, perform in relation to the Activity;
 - c) the length of time that has passed since the person's charge or conviction and his or her record since that time;
 - d) the circumstances in which the person will, or is likely to, have contact with a Vulnerable Person as part of the Activity;
 - e) any other relevant matter and must ensure it fully documents the conduct and outcome of the risk assessment.
- 22.5 The Service Provider agrees to notify NACCHO of any risk assessment it conducts under this clause and agrees to provide NACCHO with copies of any relevant documentation on request.
- 22.6 If during the term a person involved in performing work on any part of the Activity that involves working or contact with a Vulnerable Person is:
- a) charged with a Serious Offence or Other Offence, the Service Provider must immediately notify NACCHO; or
 - b) convicted of a Serious Offence, the Service Provider must immediately notify NACCHO and ensure that that person does not, from the date of the conviction, perform any work or role relating to the Activity.

23. Child Safety

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- 23.1 If any part of the Services involves the Service Provider employing or engaging a person (whether as an officer, employee, contractor or volunteer) that is required by State or Territory law to have working with children and/or vulnerable people check to undertake Services or any part of the Services, the Service Provider agrees:
- a) To comply with all State, Territory or Commonwealth laws relating to the employment or engagement of people who work or volunteer with children and/or vulnerable people in relation to the Services, including mandatory reporting and working with children and/or vulnerable people checks however described in your State or Territory.
 - b) If requested, provide NACCHO an annual Child Safe Statement of Compliance in accordance with this Clause 23, in such form as may be specified by NACCHO.

24. Privacy

- 24.1 When dealing with Personal Information in carrying out the Activity, the Service Provider agrees:
- a) to comply with the requirements of the *Privacy Act 1988 (Cth)*; and
 - b) have a Health Service Privacy Policy in place that outlines how patients' information is collected stored and used consistent with the requirements of the *Privacy Act 1988* and other relevant legislation; and
 - c) not to do anything that would be a breach of an Australian Privacy Principle.

25. National Anti-Corruption Legislation

- 25.1 As a Service Provider under a Commonwealth Government funding arrangement , the Service Provider acknowledges for the purposes of the *National Anti-Corruption Commission Act 2022*, it is regarded as a contracted service provider for the purposes of this legislation and its conduct under this Agreement may be subject to investigation in line with this Act.

Illegal or Corrupt Practice means directly or indirectly:

- a) making or causing to be made, any offer, gift, payment, consideration or benefit of any kind to any party, or
 - b) receiving or seeking to receive, any offer, gift, payment, consideration or benefit of any kind from any party, as an inducement or reward in relation to the performance of the Activity, which would or could be construed as an illegal or corrupt practice.
- 25.2 The Service Provider warrants that the Service Provider, its officers, employees, contractors, agents and any other individual or entity involved in carrying out the Services have not, engaged in an Illegal or Corrupt Practice.
- 25.3 The Grantee agrees not to, and to take all reasonable steps to ensure that its officers, employees, contractors, agents and any other individual or entity involved in carrying out the Services do not:

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- a) engage in an Illegal or Corrupt Practice; or
- b) engage in any practice that could constitute the offence of bribing a foreign public official contained in section 70.2 of the *Criminal Code Act 1995 (Cth)*.

25.4 The Service Provider agrees to inform NACCHO within five business days if the Service Provider becomes aware of any activity as described in 25.2 in relation to the performance of the Services.

26. Modern Slavery Act

26.1 The Service Provider must take reasonable steps to identify, assess, and address risks of Modern Slavery practices in the operations and supply chains used in the provision of the Goods and/or Services.

26.2 If at any time the Service Provider becomes aware of Modern Slavery practices in the operations and supply chains used in the performance of the Contract, the Service Provider must, as soon as reasonably practicable, take all reasonable action to address or remove these practices, including where relevant by addressing any practices of other entities in its supply chains

27. Payment for Services

27.1 The total amount to be paid to the Service Provider is **\$ 295,015.09** (GST excl).

Grant Milestone Payment Schedule					
Payment	Milestone Description	Payment Date	Amount (excl. GST)	GST	Total Payment (GST Inc)
1 40%	On execution of Contract	On execution	\$ 118,006.04	\$ 11,800.60	\$ 129,806.64
2 30%	Submission and acceptance of: - Activity Workplan - Program Budget - Risk Management Plan	10 April 2025	\$ 88,504.53	\$ 8,850.45	\$ 97,354.98
3 30%	Submission and acceptance of: - Progress Report 1 - Unaudited Financial Acquittal 1 - Application to Rollover Funding <i>(if applicable)</i>	10 October 2025	\$ 88,504.53	\$ 8,850.45	\$ 97,354.98
Total			\$ 295,015.09	\$ 29,501.51	\$ 324,516.60

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27.2 The payment for Services must be held in an account in the Service Provider's name and which the Service Provider controls, with an authorised deposit-taking institution authorised under the *Banking Act 1959 (Cth)* to carry on banking business in Australia.

27.3 The Service Provider's nominated bank account:

BSB Number	035-303
Financial Institution	Westpac
Account Number	486175
Account Name	Urapuntja Health Service Aboriginal Corporation
Email Address for Recipient Created Tax Invoice	accounts@urapuntja.org.au

27.4 Any underspends from the initial BBVSTI Program may be retained by Service Providers. However, NACCHO may offset the amount against a future milestone payment from this contract.

28. Invoicing

28.1 The Service Provider warrants it is registered for Goods and Services Tax and agrees to allow NACCHO to issue it with a Recipient Created Tax Invoice (RCTI) for any taxable supplies it makes in relation to the Services.

29. Reporting

29.1 The Service Provider agrees to provide the following reports (outlined below in items A:H) to NACCHO using reporting templates provided by NACCHO. All reporting is to be sent by the due dates to BBVSTI@naccho.org.au

29.2 If an extension to any reporting listed below is required, the Service Provider is required to email BBVSTI@naccho.org.au to negotiate a formal extension.

BBVSTI Program Reporting Requirements:

Reporting Schedule – see items A:H below for further details		
Contract Activity	Information to be included	Due Date
Activity Workplan	Activity Workplan for 1 January 2025 – 30 June 2026	14 March 2025
Program Budget	Program Budget for the entire contract period	14 March 2025

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Risk Management Plan	Risk Management Plan for the entire contract period	14 March 2025
Progress Report 1	Progress against approved Activity Workplan for 1 January 2025 – 30 June 2025	31 July 2025
Unaudited Financial Acquittal 1	For 1 January 2025 – 30 June 2025 <i>Must be signed by CEO and CFO (or equivalent)</i> <i>Where applicable, Application to roll over underspend</i>	31 July 2025
De-identified Data Reporting 1	National Key Performance Indicator (nKPI), Indicator 25 for 1 January 2025 – 30 June 2025	31 July 2025
Progress Report 2	Progress against approved Activity Workplan for 1 July 2025 – 31 December 2025	31 January 2026
Progress Report 3: <i>Including final evaluative questions</i>	Progress against approved Activity Workplan for 1 January – 30 June 2026 & Evaluative questions covering 1 January 2025 – 30 June 2026	31 July 2026
De-identified Data Reporting 2	National Key Performance Indicator (nKPI), Indicator 25 for 1 July 2025 – 30 June 2026	31 July 2026
Unaudited Financial Acquittal	For 1 July 2025 – 30 June 2026 (25-26 FY) <i>Must be signed by CEO and CFO (or equivalent)</i>	31 July 2026

A. Activity Workplan

The Service Provider will complete the Activity Workplan covering the duration of the contract period, with revisions if required by NACCHO, by the due date specified above. A template has been provided by NACCHO (*Attachment A*). The Activity Workplan will detail:

- (a) How the Service Provider will fulfil the objectives and meet the outcomes outlined above.
- (b) Proposed performance indicators/targets.
- (c) Indication of the Service Provider's decision to Opt-in to Syphilis Point of Care Testing.
- (d) Where the Service Provider has an underspend from previous financial years, completion of the underspend activity section.

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Note: underspend activities are to be completed within the 1 January 2025 – 31 December 2025 period within the BBVSTI Program and require approval by NACCHO.

B. BBVSTI Program Budget

The Service Provider will complete the Program Budget covering the duration of the contract period, with reviews if required by NACCHO, by the due date specified in the table above. A template has been provided by NACCHO (*Attachment B*). The budgets should not exceed the contract funding provided in *clause 27.1*.

The Budget will include:

- (a) Allocation of funding for the entire BBVSTI Program, in accordance with the eligible activities (*clause 5.2*), divided into reporting periods:
 - a. 1 January – 30 June 2025
 - and
 - b. 1 July 2025 – 30 June 2026 FY.
- (b) Where the Service Provider has an underspend from previous BBVSTI Program contracts, completion of the underspend budget tab (in *Attachment B*) for approval to rollover the unspent funding. NACCHO approval is required to rollover funding into subsequent reporting periods.

C. Risk Management Plan

The Service Provider will complete the Risk Management Plan by the due date covering the duration of the contract period, with reviews if required by NACCHO. A template has been provided by NACCHO (*Attachment C*). The Risk Management Plan will detail:

- (a) Potential risks that may affect the Service Provider's delivery of the BBVSTI Program.
- (b) Outline the impact each identified risk will have on the Program activity.
- (c) Identify the likelihood and impact for each risk should they occur.
- (d) Outline the actions the Service Provider will take to mitigate risk.

D. Progress Report

The Service Provider will complete a six-monthly Progress Report detailing performance within the BBVSTI Program during the reporting period. A template will be provided by NACCHO. The Progress Report will include:

- (a) The role description and FTE funded by the Service Provider to implement BBVSTI Program.
- (b) Achievements and progress towards meeting the objectives and outcomes stated in the approved Activity Workplan.
- (c) A brief outline as to how the Service Provider is addressing any issues, problems or delays with the Activity.
- (d) Any proposed changes to the Activity Workplan and/or Budget.
- (e) Update on underspend activity (where applicable).

E. Unaudited Financial Acquittal

The Service Provider is to provide to NACCHO an Unaudited Financial Acquittal for each whole Financial Year, during which the Service Provider is required to perform activities. A template will be provided by NACCHO. The Financial Acquittal must include:

- (a) Financial declaration certifying funds have been used for the purposes intended in line with this Contract to be signed by the Chief Executive Officer and a Chief Finance Officer or equivalent covering the whole Financial Year;
and
- (b) Income and Expenditure Statement and Other Financial Information, covering the whole Financial Year.

F. Application to Rollover Funding

Where the Service Provider has an underspend within the BBVSTI Program, an application to rollover funding into a subsequent financial year, is required. A template will be provided by NACCHO. Approval by NACCHO is required to rollover the funding. Once approved, the activity in the application to rollover funding will be added to the next Progress Report which the Service Provider will be required to report against. The Application to rollover funding will need to accompany the Unaudited Financial Acquittal (see Item E) and include:

- (a) Amount Service Provider is requesting to rollover.
- (b) Reason for the underspend.
- (c) Rationale for the use of the unspent funding in subsequent funding periods.
- (d) Risk mitigation strategies to ensure the underspend does not impact the BBVSTI Program delivery.
- (e) Signed by Service Provider Signatory and a Witness.

G. Progress Report and Final Evaluative Report

The Service Provider will complete the Final Report including an evaluative question. A template will be provided by NACCHO. The report will contain information on the Service Providers performance of the BBVSTI Program over the contract period, and will include:

- (a) Achievements and outcomes towards meeting the objectives and outcomes stated in the Activity Workplan for the 1 January 2026 – 30 June 2026.
- (b) Information on the Service Provider's involvement and collaboration with other stakeholders to improve Aboriginal and Torres Strait Islander sexual health outcomes.
- (c) A description as to how the Service Provider has addressed any barriers, issues or delays with the Activity.
- (d) Providing a self-assessment on how well your ACCHO achieved the BBVSTI program outcomes and objectives from 1 January 2025 – 30 June 2026.
- (e) Highlighting the strengths and successes within the BBVSTI Program.

H. Data Reporting: National Key Performance Indicator (nKPI) – Indicator 25

The Service Provider will submit nKPI data, specifically Indicator 25 ('STI Results'). Template and instructions will be provided by NACCHO. Data reporting will include:

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- (a) Proportion of Aboriginal and Torres Strait Islander regular clients aged 15–34 who were tested for one or more sexually transmissible infections (STIs) (chlamydia and/or gonorrhoea) within the reporting period.

30. Force Majeure

30.1 If the Service Provider is affected, or likely to be affected, by a Force Majeure Event:

- a) it must promptly without delay notify NACCHO of that fact.
- b) The Service Provider's obligations under this Contract are suspended to the extent to which it is affected by the Force Majeure Event and such suspension will be effective for as long as the Force Majeure Event continues.

"Force Majeure Event" means any event which is:

- a) beyond the control of and has occurred without the fault or negligence of the Service Provider;
- b) was not foreseeable by the Service Provider and NACCHO at the date of this Contract;

and

- c) the Service Provider is unable to prevent or overcome by the exercise of reasonable diligence, which includes floods, fires, earthquakes or other physical natural disaster, acts of war or terrorism, riots, civil or military disturbances, national or state-wide industrial disputes (excluding actions by, between or originated among the employees of the Service Provider).

31. Party representatives and address for notices

Service Provider Representative and Address

Name of Service Provider representative	Melissa Hinson
Position	Chief Executive Officer
Physical address	Sandover Highway, Amengernterneath via Alice Springs NT 0872
Postal address	PMB 31 Utopia via Alice Springs NT 0872
Business hours telephone	(08) 8956 9875
Mobile number	0439 040 070
Email	ceo@urapuntja.org.au

NACCHO Representative and Address

Name of representative	Dr Dawn Casey PSM FAHA
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Position	Deputy Chief Executive Officer
Physical address	Level 5 East, 2 Constitution Ave, Canberra ACT 2601
Postal address	PO Box 299, Canberra, ACT 2601
Business hours telephone	02 6246 9300
Email	Dawn.casey@naccho.org.au

Name of representative	Carrie Fowlie
Position	Director, Communicable Diseases
Physical address	Level 5 East, 2 Constitution Ave, Canberra ACT 2601
Postal address	PO Box 299, Canberra ACT 2601
Business hours telephone	02 6246 9300
Email	Carrie.fowlie@naccho.org.au

- 31.1 The Parties' representatives as specified above will be responsible for liaison and day-to-day management of this Contract as well as accepting and issuing any written notices in relation to this Contract

NACCHO Contract for Services

Executed as a Contract for Services

Signed for and on behalf of the National Aboriginal Community Controlled Health Organisation by the relevant authorised Delegate, in the presence of:

DAWA COSEY
(Name of NACCHO Representative)

Dasay
(Signature of NACCHO Representative)
9/12/24

Deputy CEO
(Position of NACCHO Representative)

CARRIE FOWLIE
(Name of Witness in full)

Carrie Fowlie
(Signature of Witness)
9/12/24

Signed for and on behalf of **Urapuntja Health Service Aboriginal Corporation (ABN 45 449 518 275)** in accordance with its rules, and who warrants that he/she is authorised to sign this Contract:

Melissa Hinson, Chief Executive Officer
(Name and position held by Signatory)

Melissa Hinson
(Signature)

05/12/2024

Michelle Stacey, Chief Financial Officer
(Name and position held by Witness)

M. Stacey
(Signature of Witness)

05/12/2024

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ATTACHMENTS

Attachment A | Activity Workplan template

Attachment B | Program Budget template

Attachment C | Risk Management Plan template

Attachment D | Guidelines for the Use of Syphilis Point of Care Testing 2024

Attachment E | Conflict of Interest Declaration